

Oath Act, 2022

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Oath Related Act, 2079

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Act Number 23 of the year 2079

Preamble: Whereas, it is desirable to make legal provisions regarding the taking of oath of office and secrecy by a person holding a public office,

The Federal Parliament has enacted this Act. 1. Short Title and Commencement: (1) This Act may be called the "Oath Related Act, 2079".

(2) This Act shall come into force immediately. 2. Definition: Unless the subject or context otherwise requires, in this Act,-

(a) "Oath-administering official" means a person holding a public office who is authorized to administer the oath to a person holding a public office.

(b) "Public office" means a public office to which a person is appointed, elected or nominated pursuant to the Constitution, other prevailing laws or the decision or order of an authorized official, and which entitles the person to exercise public authority or requires the person to perform any duty or discharge any responsibility.

3. Oath to be taken: (1) A person holding a public office who is required to take an oath pursuant to prevailing law shall, before assuming office, take the oath of office and secrecy from the official specified in the Constitution or other prevailing law, in the format specified in the prevailing law.

(2) In case the Constitution or other prevailing law has a provision requiring an oath to be taken but such law does not specify the format of the oath, such person holding the public office shall take the oath of office and secrecy in the format as per the Schedule.

(3) In case a person is appointed, elected or nominated to a public office pursuant to prevailing law but the law concerned has no provision requiring an oath to be taken, such person holding the public office shall take the oath of office and secrecy from an official designated by the Government of Nepal, in the format as per the Schedule. 4. To be present in formal attire: (1) A person holding a public office shall, when taking or administering an oath, be present in the formal attire prescribed by the Government of Nepal.

(2) Notwithstanding anything contained in subsection (1), a person taking an oath or an oath-administering official may take or administer the oath wearing a dignified dress or attire reflecting their culture and tradition or identity. 5. Language of the oath: (1) The oath shall be taken or administered in the Nepali language, which is the language of official business.

(2) Notwithstanding anything contained in subsection (1), a person holding a public office may take the oath in their mother tongue spoken in Nepal.

In case of taking the oath in the mother tongue, the content of the oath mentioned in the Schedule shall be translated into the mother tongue, and such translation shall be self-certified and submitted to the oath-administering official prior to taking the oath. (3) A person holding a public office who takes the oath in the Nepali language shall sign two copies of such oath, and if the oath is taken in the mother tongue, shall sign two copies of the oath in that mother tongue as well, and submit them to the oath-administering official.

6. Assumption of office: A person holding a public office shall assume their office after taking the oath. 7. Maintenance of records: One copy of the oath taken by a person holding a public office shall be kept as a record in the office of the oath-administering official, and the other copy shall be sent to the concerned body.

8. Oath deemed to have been taken: An oath taken before the commencement of this Act by a person appointed, elected or nominated to a public office pursuant to the Constitution or other prevailing law shall be deemed to have been taken under this Act. 9. Effect after lapse of Oath Related Ordinance, 2078: After the lapse of the Oath Related Ordinance, 2078, unless a contrary intention appears, such lapse shall not,- (a) revive anything not in force or existing at the time of the lapse of that Ordinance, (b) affect anything done, any action taken, or any right accrued or anything enjoyed under that Ordinance, (c) affect any right, privilege, obligation or liability acquired, accrued or incurred under that Ordinance, (d) affect any action, proceedings or remedy undertaken in respect of any such right, privilege, obligation or liability, and any such legal proceedings or remedy may be instituted, continued or enforced as if that Ordinance had continued to be in force.